

"pragmatic, flexible approach." *Ante*, at 442. Recasting, for the immediate purposes of this case, our narrow holding in *United States v. Nixon*, 418 U. S. 683 (1974), see *infra*, at 515-516, the Court distills separation-of-powers principles into a simplistic rule which requires a "potential for disruption" or an "unduly disruptive" intrusion, before a measure will be held to trench on Presidential powers.⁷

The Court's approach patently ignores *Buckley v. Valeo*, where, only one year ago, we *unanimously* found a separation-of-powers violation without any allegation, much less a showing, of "undue disruption." There, we held that Congress could not impinge, even to the modest extent of six appointments to the Federal Election Commission, on the appointing powers of the President. We reached this conclusion in the face of the fact that President Ford had signed the bill into law.⁸

dangers of "encroachments" by the Legislative Branch upon the coordinate departments of Government.

But aside from the Court's highly selective discussion of the Framers' understanding, the Court cannot obscure the fact that this Court has never required, in order to show a separation-of-powers violation, that Congress usurped *the whole* of executive power. Any such requirement was rejected by the Court in *Buckley v. Valeo*, 424 U. S. 1 (1976). There, we held that Congress could not constitutionally exercise the President's appointing powers, even though under that statute the President had the power to appoint one-fourth of the Federal Election Commission members, and even though the President had "approved" the statute when he signed the bill into law.

⁷ Nowhere is the standard clarified in the majority's opinion. We are left to guess whether only a "potential for disruption" is required or whether "undue disruption," whatever that may be, is required.

⁸ The federal parties filed three briefs in *Buckley*. The main brief, styled the "Brief for the Attorney General as Appellee and for the United States as *Amicus Curiae*," explicitly stated that the method of appointment of four of the members of the Commission was unconstitutional. See pp. 6-7, 110-120. The Attorney General signed this portion of the brief as a party (see pp. 2, 103 n. 65). The Executive Branch therefore made it clear that, in its view, the statute was unconstitutional to the extent it reposed appointing powers in Congress. The second brief, styled the "Brief for